IN THE UNITED STATES DISTRICT COURT
FOR THE NORTHERN DISTRICT OF ILLINOIS
EASTERN DIVISION

Union Tank Car Company,

Plaintiff,
v.

Big Will Enterprises Inc.,

Defendant.

Case No.: 1:26-cv-10014

COMPLAINT FOR DECLARATORY JUDGMENT

JURY TRIAL DEMANDED

Plaintiff Union Tank Car Company ("UTLX") files this Complaint for Declaratory Judgment against Defendant Big Will Enterprises Inc. ("BWE") and alleges as follows:

NATURE OF THE ACTION

1. This is an action for declaratory judgment of non-infringement and invalidity arising under the patent laws of the United States, 35 U.S.C. § 1 *et seq.*, and the Declaratory Judgment Act, 28 U.S.C. §§ 2201–2202.

2. BWE has accused UTLX of infringing claims of U.S. Patent Nos. 8,452,273 ("the '273 Patent"), 8,559,914 ("the '914 Patent"), 8,737,951 ("the '951 Patent"), and 9,049,558 ("the '558 Patent") (collectively, the "Asserted Patents"), and has demanded that UTLX either take a license or cease its accused activities and pay BWE. UTLX seeks a declaratory judgment that it has not infringed and does not infringe the claims of the Asserted Patents and that those claims are invalid. True and correct copies of the '273 Patent, '914 Patent, '951 Patent, and '558 Patent are attached hereto as Exhibits 1, 2, 3, and 4, respectively.

3. UTLX also seeks relief under the Illinois Consumer Fraud and Deceptive Business Practices Act, 815 ILCS 505/2SSS, because BWE sent UTLX a patent infringement demand letter that failed to provide concrete UTLX-specific factual allegations showing how UTLX's actual products, services, or technology perform numerous limitations of the Asserted Patents or otherwise are covered by their claims.

PARTIES

4. UTLX is a Delaware corporation with its principal place of business at 181 West Madison Street, Suite 2500, Chicago, Illinois 60602.

5. BWE is a Canadian company headquartered at 4573 West 1st Avenue, Vancouver, British Columbia V6R 1H7, Canada.

JURISDICTION AND VENUE

6. This action arises under the patent laws of the United States, 35 U.S.C. § 1 *et seq.*, and the Declaratory Judgment Act, 28 U.S.C. §§ 2201–2202.

7. This Court has subject matter jurisdiction over UTLX's claims for declaratory judgment of patent non-infringement and invalidity pursuant to 28 U.S.C. §§ 1331 and 1338(a). The Court is authorized to grant declaratory relief pursuant to 28 U.S.C. §§ 2201 and 2202.

8. This Court has supplemental jurisdiction over UTLX's state-law claim in Count IX pursuant to 28 U.S.C. § 1367(a) because that claim forms part of the same case or controversy as UTLX's federal patent law claims and arises from the same nucleus of operative facts, including BWE's Demand Letter and its assertion of the Asserted Patents against UTLX.

9. This Court has personal jurisdiction over BWE consistent with the Due Process Clause of the United States Constitution and the Illinois long-arm statute, 735 ILCS 5/2-209. BWE purposefully

directed patent enforcement activities at Illinois and this District by, among other things, sending its Demand Letter to UTLX's President at UTLX's principal place of business in Chicago, Illinois, accusing UTLX of infringing the Asserted Patents, and demanding that UTLX either obtain a license or cease its accused activities and pay BWE. UTLX's claims arise directly out of and relate to those Illinois-directed enforcement activities. BWE has also directed substantially similar patent enforcement communications to other companies in this District, including rail industry participants located in this District.

10. In the alternative, if the Court determines that BWE is not subject to personal jurisdiction under Federal Rule of Civil Procedure 4(k)(1)(A), BWE is subject to personal jurisdiction in this Court pursuant to Federal Rule of Civil Procedure 4(k)(2). This action arises under federal law, BWE has sufficient contacts with the United States as a whole, and the exercise of jurisdiction over BWE is consistent with the United States Constitution and laws.

11. Venue is proper in this District pursuant to 28 U.S.C. § 1391(c)(3) because BWE is a foreign entity that does not reside in the United States and therefore may be sued in any judicial district. Venue is also proper in this District pursuant to 28 U.S.C. § 1391(b)(2) because a substantial part of the events giving rise to UTLX's claims occurred in this District.

UTLX AND ITS BUSINESS

12. UTLX is a leading designer, manufacturer, lessor, and maintenance provider of railroad tank cars and other specialized railcars. UTLX traces its history to 1891 and, together with its Canadian affiliate Procor Limited ("Procor"), is owned by Marmon Holdings, Inc.

13. In the early 2000s, UTLX developed internally a proprietary fleet-management and customer-service software application known as "Link-Net." Link-Net provides functionality relating to car tracing, repair-service requests, fleet-management reporting, billing information, leasing information, and customer notifications concerning the status of railcars.

14. UTLX has used Link-Net since at least as early as 2002. Link-Net is a fleet-management and customer-service application, not the underlying telematics or sensor-processing technology used in third-party Remote Monitoring Equipment ("RME"), and was not developed to perform the accelerometer- or sensor-processing operations claimed by the Asserted Patents.

15. Telematics technology is not a core component of UTLX's business. UTLX and Procor operate railcar fleets comprising approximately 118,000 railcars. Of that total fleet, only approximately 2,217 UTLX railcars and 252 Procor railcars are registered as equipped with RME, including GPS units and similar telematics devices, representing approximately 2.5% and 0.8% of their respective fleets. The telematics functionality associated with those railcars is provided through hardware, software, or services supplied by independent third-party vendors. UTLX does not develop, own, or control the underlying GPS, accelerometer, sensor, or telematics technology incorporated into such third-party equipment.

16. UTLX is not, and has never been, a member of RailPulse, a coalition of rail-industry participants that operates an industry-wide railcar telematics platform. UTLX does not use or subscribe to RailPulse or any RailPulse platform, portal, database, or API in connection with its fleet-management or operational activities. Link-Net does not integrate with, exchange data with, or otherwise operate as part of any RailPulse system or architecture.

BWE AND ITS BUSINESS

17. BWE claims to own all right, title, and interest in and to the Asserted Patents and asserts the right to license and enforce them.

18. On information and belief, BWE is a non-practicing entity that does not manufacture or sell products or services practicing the Asserted Patents and instead engages in licensing and enforcing its patent portfolio, including through patent infringement litigation against operating companies.

19. Since 2020, BWE has filed more than thirty patent infringement lawsuits against operating companies in a wide array of industries, repeatedly asserting one or more of the Asserted Patents (the "Prior Lawsuits"). These defendants have included, among others, companies in the automotive, transportation, telematics, insurance, logistics, and technology industries. *See, e.g., Big Will Enterprises Inc. v. Enterprise Holdings, Inc.*, Case No. 1-26-cv-00652 (WDTX) (filed March 18, 2026); *Big Will Enterprises Inc. v. Frotcom International, S.A.*, Case No. 1-25-cv-01929 (WDTX) (filed November 25, 2025); *Big Will Enterprises Inc. v. Mitsubishi Corporation (Americas) et al.*, Case No. 1-25-cv-01650 (WDTX) (filed October 15, 2025); [the remaining citations to the Prior Lawsuits, WDTX, EDTX, NDTX and SDTX, are omitted from this transcription].

20. BWE has filed its Prior Lawsuits exclusively in federal district courts in Texas.

21. BWE has voluntarily dismissed with prejudice numerous Prior Lawsuits within months of filing, including actions that terminated before substantial merits litigation occurred. This pattern is consistent with BWE's use of patent infringement litigation as part of its patent licensing and enforcement activities.

22. BWE sent UTLX a demand letter dated July 13, 2026, regarding the Asserted Patents (the "Demand Letter"). The Demand Letter was addressed to the President of UTLX and Procor, at UTLX's principal place of business in Chicago, Illinois. A true and correct copy of the Demand Letter is attached hereto as Exhibit 5.

23. Although dated July 13, 2026, the United States Postal Service label affixed to the envelope in which UTLX received the Demand Letter reflects an origin date of July 28, 2026, fifteen days after the date appearing on the Demand Letter and after BWE's two-week response deadline had already expired.

24. In the Demand Letter, BWE: (a) claims ownership of the Asserted Patents; (b) accuses UTLX of infringing the Asserted Patents through an alleged "integrated railcar telematics architecture" involving Link-Net, RailPulse, and third-party telematics hardware; (c) provides charts purporting to

map claim limitations of the Asserted Patents onto what BWE calls UTLX's "Integrated Railcar Telematics Architecture (Link-Net / RailPulse)"; (d) demands that UTLX either enter into a license with BWE or cease use of the allegedly infringing technologies and compensate BWE for past use; (e) demands a response within two weeks of the date appearing on the Demand Letter; and (f) states that BWE is fully prepared to enforce its intellectual property rights if this matter cannot be resolved cooperatively.

25. At or around the same time, BWE sent substantially similar patent enforcement demand letters to other participants in the railcar industry, including at least GATX Corporation. GATX Corporation subsequently filed a declaratory judgment action against BWE in this District. *GATX Corporation v. Big Will Enterprises Inc.*, No. 1:26-cv-08492 (N.D. Ill. filed July 17, 2026).

26. BWE's conduct creates a substantial and immediate controversy concerning UTLX's alleged infringement of the Asserted Patents. BWE expressly accused UTLX of infringement, demanded that UTLX take a license or cease its allegedly infringing activities and compensate BWE for past use, imposed a two-week response deadline, and stated that it was fully prepared to enforce its intellectual property rights if the matter could not be resolved cooperatively. BWE also has an extensive history of filing patent infringement actions to enforce the Asserted Patents and, contemporaneously with its assertions against UTLX, asserted related patent claims against another railcar industry participant, GATX Corporation, resulting in litigation in this District.

27. Accordingly, an actual, definite, concrete, and justiciable controversy exists between UTLX and BWE concerning UTLX's alleged infringement of, and the validity of, the claims asserted against UTLX under the Asserted Patents. This controversy is of sufficient immediacy and reality to warrant declaratory relief.

THE ASSERTED PATENTS AND BWE'S INFRINGEMENT ALLEGATIONS

28. UTLX developed and began using Link-Net years before the earliest claimed priority date of any of the Asserted Patents. UTLX began using Link-Net at least as early as 2002. The earliest claimed priority date among the Asserted Patents is January 16, 2008.

29. The '273 Patent and '558 Patent are related patents that claim priority to the same three provisional applications filed in 2012. Both patents are directed to systems and methods for determining a "mobile thing motion activity" ("MTMA") associated with a "mobile thing" ("MT") using movement data obtained from a "wireless communication device" ("WCD") transported by the MT. The patents disclose, among other things, receiving accelerometer data (and, in the '558 Patent, other sensor data) indicative of movement of the WCD, determining reference data from a set of sensor data, using the reference data to calculate or normalize subsequent movement data, and determining an MTMA based on the resulting movement data.

30. The '914 Patent and '951 Patent are related patents directed to "interactive personal surveillance and security" ("IPSS") systems and methods. The '951 Patent is a continuation-in-part of the application that issued as the '914 Patent, and both claim priority to a provisional application filed in 2008. The patents disclose systems and methods in which a portable or wireless communication device collects information concerning a user or the user's surroundings, uses sensor or other data to assess the user's activity or circumstances, selects or changes a surveillance mode based on that assessment, and causes the device or a remote computer to take a responsive action, such as collecting or transmitting surveillance information, activating an alarm, or contacting another person or device.

31. BWE's infringement allegations in the Demand Letter rest centrally on the premise that Link-Net and RailPulse together form what BWE calls UTLX's "Integrated Railcar Telematics Architecture (Link-Net / RailPulse)." That premise is incorrect. UTLX is not a member of RailPulse, does

not use or subscribe to RailPulse in its fleet-management or operational activities, and Link-Net does not integrate with, exchange data with, or otherwise operate as part of any RailPulse system or architecture.

32. Upon information and belief, BWE's infringement allegations appear to rely heavily on publicly available materials and generalized information concerning the railcar telematics industry, RailPulse, and third-party telematics products, rather than on information specific to UTLX's actual systems, operations, or the limited extent to which third-party telematics equipment is used in connection with UTLX's fleet.

33. The Demand Letter repeatedly qualifies material factual assertions concerning UTLX's accused systems with phrases such as "on information and belief," "may include," "is reasonably understood to be equipped," and similar qualifying language, rather than identifying concrete facts concerning the specific technologies, systems, or equipment actually used by UTLX.

34. UTLX has not infringed and does not infringe, directly or indirectly, literally or under the doctrine of equivalents, any claim asserted by BWE against UTLX under any of the Asserted Patents. In addition, the claims asserted by BWE against UTLX are invalid.

COUNT I

DECLARATORY JUDGMENT OF NON-INFRINGEMENT OF THE '273 PATENT

35. UTLX incorporates and realleges each allegation in paragraphs 1 through 34 above as though fully set forth herein.

36. BWE has accused UTLX of infringing claims 1–23 of the '273 Patent, including independent claims 1, 12, and 22, through what BWE characterizes as UTLX's "Integrated Railcar Telematics Architecture (Link-Net / RailPulse)."

37. Each of independent claims 1, 12, and 22 requires, among other things, the receipt of acceleration data from an accelerometer associated with a wireless communication device ("WCD") transported by a mobile thing ("MT"), the determination or computation of reference data from that acceleration data, the use of the reference data to normalize or calculate movement data, and the determination or identification of a motion activity associated with the MT (referred to in the '273 Patent as an "MTMA") based on the resulting movement data.

38. UTLX does not itself perform those claimed sensor-processing operations. Link-Net is a fleet-management and customer-service application and was not developed to receive or process accelerometer data, recognize or determine accelerometer-based reference data, normalize acceleration data in a claimed reference framework, calculate movement data from such reference data, or determine an MTMA from such movement data.

39. UTLX likewise does not develop, manufacture, or control the accelerometers, sensors, wireless communication devices, firmware, or sensor-processing technology used in third-party telematics or RME equipment associated with UTLX railcars. To the limited extent UTLX railcars are equipped with such equipment, the underlying telematics and sensor functionality is supplied by independent third-party vendors.

40. BWE's charts in the Demand Letter do not identify facts showing that UTLX performs the particular accelerometer-processing steps required by claims 1, 12, or 22. Instead, BWE equates generalized railcar information and functions (such as location, vibration, shock, condition, maintenance, repair, status, thresholds, historical information, and other operational data) with the specific acceleration-data, reference-framework, normalization, movement-data, and MTMA limitations recited by the claims.

PRAYER FOR RELIEF

WHEREFORE, UTLX respectfully requests that the Court enter judgment in its favor and against BWE and grant the following relief:

(a) A declaratory judgment that UTLX has not infringed and does not infringe, directly or indirectly, literally or under the doctrine of equivalents, any claim asserted by BWE against UTLX under the Asserted Patents;

(b) A declaratory judgment that the claims asserted by BWE against UTLX under the Asserted Patents are invalid under at least 35 U.S.C. § 101;

(c) A judgment that BWE violated 815 ILCS 505/2SSS by sending UTLX the Demand Letter without providing the concrete UTLX-specific factual allegations required by 815 ILCS 505/2SSS(b)(4)(C) showing how UTLX's actual products, services, or technology allegedly infringe the Asserted Patents or otherwise are covered by their claims;

(d) An award to UTLX of its actual damages resulting from BWE's violation of 815 ILCS 505/2SSS, in an amount to be determined at trial, together with such other relief as is authorized by the Illinois Consumer Fraud and Deceptive Business Practices Act;

(e) An award to UTLX of its reasonable attorneys' fees and costs pursuant to 815 ILCS 505/10a;

(f) A determination that this case is exceptional under 35 U.S.C. § 285 and an award to UTLX of its reasonable attorneys' fees pursuant to that statute;

(g) An award to UTLX of its taxable costs and such pre-judgment and post-judgment interest as permitted by law; and

(h) Such other and further relief as the Court deems just and proper.

DEMAND FOR JURY TRIAL

UTLX demands a trial by jury on all issues so triable.

Dated: August 19, 2026

Respectfully submitted,

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